

Moreover, Arteaga asserts that Aguirre has admitted certain facts according to the Court's 5/29/26 order deeming matters admitted as against Aguirre. Specifically, Request for Admission (RFA) No. 5 states "ARTEAGA's interest in the MARTIN STREET is as a tenant in common with a 50% interest in said real property." (Reply, p. 4:26-28.) RFA No. 6 states "YOUR [Aguirre] interest in Martin Street is as a tenant in common with a 50% interest in said real property." (Reply, p. 5:1-2.) RFA No. 7 states "YOU [Aguirre] are not entitled to credits, claims, offsets or reimbursements against ARTEAGA's 50% ownership interest in MARTIN STREET." (Reply, p. 5:3-4.) RFA No. 8 states "ARTEAGA has a statutory right to partition his interest in MARTIN STREET from YOUR claimed interest in MARTIN STREET, pursuant to CCP § 874.311.) (Reply, p. 5:5-6.) Notably, Aguirre failed to oppose the motion to deem RFAs admitted.

Based on the foregoing, Arteaga has established that his Complaint states he elected to buy out his cotenant's interest in the subject property, which barred Aguirre from buying out Arteaga's interest. (CCP § 874.317(a).) Arteaga also established that he and Aguirre each own a 50% interest in the title to the subject property based on the 2021 grant deed from Frank Aguirre (deceased.) Aguirre has not established otherwise, nor has she raised any triable issue of material fact as to the partition cause of action. Thus, summary adjudication of that claim is appropriate.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2407387	PELAYO VS AMERICAN HONDA MOTOR CO., INC.	MOTION TO BIFURCATE

Tentative Ruling:

The Court directs the moving party to Section E.7. of the Court's Trial Setting Order, issued July 17, 2026. The Court finds that based upon its prior Order; the Motion is moot.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2506218	DAO VS AMERICAN HONDA MOTOR CO., INC.	MOTION TO BIFURCATE

Tentative Ruling:

The Court directs the moving party to Section E.7. of the Court's Trial Setting Order, issued March 10, 2026. The Court finds that based upon its prior Order; the Motion is moot.